Fort Bend County District Court

Cause No. 2026-CV-0014

Kayla Brooks, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	6-21-26
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant, through its undersigned counsel, files this Original Answer to Plaintiff's Original Petition and respectfully shows the Court as follows.

I. General Denial

Pursuant to Rule 92 of the Texas Rules of Civil Procedure, Defendant generlaly denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Constitution and laws of the State of Texas.

II. Affirmative Defenses

First, Defendant asserts the defense of proportionate responsibility under Chapter 33 of the Texas Civil Practice and Remedies Code. Plaintiff's own negligence, including failure to keep a proper lookout and failure to yield the right-of-way, caused or contributed to the occurrence, and any recovery must be reduced or barred accordingly.

Second, Defendant asserts that the sole proximate cause of the occurrence was the conduct of a third party or an unavoidable circumstance, and not any act or omission of Defendant.

Third, Defendant asserts the defense of sudden emergency. Immediately before the occurrence, Plaintiff's vehicle entered the intersection in a manner that presented Defendant with a sudden emergency not of Defendant's own making, and Defendant responded as a reasonably prudent person would under the same circumstances.

Defendant reserves the right to amend this Answer as discovery proceeds.